
**ORDINARY MEETING OF GRIFFITH CITY COUNCIL
HELD IN VIA AUDIO-VISUAL ON
TUESDAY, 26 MAY 2020 COMMENCING AT 7:00 PM**

PRESENT

The Mayor, John Dal Broi in the Chair; Councillors, Glen Andreazza, Simon Croce, Doug Curran, Deb Longhurst, Eddy Mardon, Rina Mercuri, Anne Napoli, Mike Neville, Brian Simpson, Christine Stead and Dino Zappacosta

STAFF

General Manager, Brett Stonestreet, Director Economic & Organisational Development, Shireen Donaldson, Director Utilities, Graham Gordon, Director Sustainable Development, Phil Harding, Director Infrastructure & Operations, Phil King, Director Business, Cultural & Financial Services, Max Turner, Governance Manager, Leanne Austin and Minute Taker, Naomi Brugger

MEDIA

No media present.

1 COUNCIL PRAYER AND ACKNOWLEDGEMENT OF COUNTRY

The Meeting opened with Councillor Rina Mercuri reading the Council prayer and the Acknowledgement of Country.

The Mayor acknowledged Reconciliation Week which commences Wednesday 27 May 2020 to 3 June 2020 and advised today was National Sorry Day.

The Mayor requested Council observe a one minute silence in respect of the passing of former Councillor of Griffith City Council, Mr Paul Mackay and former Mayor and Councillor of Carrathool Shire, Mr Laurence 'Athol' Roberts.

2 APOLOGIES AND REQUESTS FOR LEAVE OF ABSENCE

No apologies or requests for leave of absence were received.

3 CONFIRMATION OF MINUTES

20/130

RESOLVED on the motion of Councillors Glen Andreazza and Christine Stead that the minutes of the Extraordinary Meeting of Council held via Audio-Visual on 14 May 2020, having first been circulated amongst all members of Council, be confirmed.

5 BUSINESS ARISING

CL01 Review of Temporary Closure of Facilities

The Mayor requested the General Manager, Mr Brett Stonestreet, update Council on the relaxation of COVID-19 restrictions.

Mr Stonestreet advised that the NSW Government announced several changes to the Public Health Order and Councils may, at their discretion, reopen some facilities with strict guidelines in place. In consultation with the Mayor, and in accordance with the resolution of Council, it has been decided to reopen the following facilities effective June 1, 2020:

- Griffith City Library
- Griffith Regional Art Gallery
- Griffith Regional Aquatic Leisure Centre for squad swimmers only (in 25m pool)
- Griffith Visitor Information Centre
- Griffith Pioneer Park Museum
- Relaxation of restrictions at Council's Administration Building, particularly Customer Service.

Councillor Andreazza asked if social distancing measures would be in place with Mr Stonestreet advising all measures would be adhered to with each facility having a 'COVID Safe Return to Work' plan to guide them through the process.

Councillor Stead enquired if parents could accompany squad swimmers at the Aquatic Centre, and asked if swimming lessons would be returning. Mr Stonestreet advised that he would take the question on notice and provide advice to Councillors regarding parents attending the Centre, adding that swimming lessons would not be returning as the NSW Government has only advised squad swimming could return.

6 DECLARATIONS OF INTEREST

Pecuniary Interests

Councillors making a pecuniary interest declaration are required to leave the meeting during consideration of the matter and not return until the matter is resolved.

Councillor John Dal Broi

CC03 Water Volumetric Water Contribution Policy

Reason – Councillor Dal Broi's family partnership is mentioned in the report as having contributed 1 meg of water.

Councillor Deb Longhurst

CC03 Water Volumetric Water Contribution Policy

Reason – A close family member is named in the report and also a property Councillor Longhurst has previously owned. Based on the report and the advice from the OLG I am prepared to participate in the meeting to ensure a quorum and delegate responsibility as per the report.

Councillor Eddy Mardon

CC03 – Water Volumetric Contributions Policy

Reason – Councillor Mardon was a director of companies that may seek to claim compensation regarding water contributions transfers to Council.

Councillor Eddy Mardon

Outstanding Action Report

Reason – Councillor Mardon was a director of companies that may seek to claim compensation regarding water contributions transfers to Council.\

Councillor Rina Mercuri

CC02 Tender Recommendation (Contract No. 15-19/20) – New Amenities Building, Jubilee Oval Construct Contractor

Reason – Councillor Mercuri's business has carried out work in the past for these contractors and there is a possibility the company will be asked to supply a quote.

Councillor Anne Napoli

CC03 Water Volumetric Water Contribution Policy

Reason – As former developers, Councillor Napoli and her partner may have contributed water or money to the policy.

Councillor Anne Napoli

Outstanding Action Report – CC01 Water Volumetric Contribution Policy

Reason – Councillor Napoli and her partner may have contributed water or money to the policy.

Councillor Anne Napoli

Outstanding Action Report

Reason – CRM No. 85594 – Minute No. 20/108, CRM No. 82202 – Minute No. 20/038, CRM No. 72186 – Minute No. 19/186.

Councillor Anne Napoli

CL08 Griffith Regional Sports Precinct Development Loan

Reason – A member of Councillor Napoli's family is one of the Directors of a Company that has quoted for this project.

Councillor Anne Napoli

CC02 Tender Recommendation (Contract No. 15-19/20) – New Amenities Building, Jubilee Oval Construct Contractor

Reason – A member of Councillor Napoli's family is one of the Directors of a Company that has quoted for this project.

Councillor Anne Napoli

CL02 – DA 144/2019 – Construction of New Service Station, Vehicle Repair Station, Specialised Retail Premises (three tenancies) and Two Lot Torrens Title Subdivision.

Reason – A member of Councillor Napoli's family is one of the directors of a Company that has quoted for this project.

Significant Non-Pecuniary Interests

Councillors making a significant non-pecuniary interest declaration are required to leave the meeting during consideration of the matter and not return until the matter is resolved.

Councillor Dino Zappacosta

CC03 Water Volumetric Water Contribution Policy

Reason – A family member has contributed to the scheme.

Councillor Glen Andreazza

CC03 Water Volumetric Water Contribution Policy

Reason – Councillor Andreazza has close relatives in the report.

Less Than Significant Non-Pecuniary Interests

Councillors making a less than significant non-pecuniary interest declaration may stay in the meeting and participate in the debate and vote on the matter.

Councillor Glen Andreazza

CL02 – DA 144/2019 – Construction of New Service Station, Vehicle Repair Station, Specialised Retail Premises (three tenancies) and Two Lot Torrens Title Subdivision.
Reason – Councillor Andreazza has been contacted by Mr Greg Young regarding the development.

Councillor Simon Croce

CL02 – DA 144/2019 – Construction of New Service Station, Vehicle Repair Station, Specialised Retail Premises (three tenancies) and Two Lot Torrens Title Subdivision.
Reason – Councillor Croce works with the author of a submission / question.

Councillor Eddy Mardon

CL02 – DA 144/2019 – Construction of New Service Station, Vehicle Repair Station, Specialised Retail Premises (three tenancies) and Two Lot Torrens Title Subdivision.
Reason – Councillor Mardon received an email regarding DA 144/2019 from Mr Restagno concerning this DA.

Councillor Eddy Mardon

CL02 – DA 144/2019 – Construction of New Service Station, Vehicle Repair Station, Specialised Retail Premises (three tenancies) and Two Lot Torrens Title Subdivision.
Reason – Councillor Mardon has spoken to Mr G Young about this DA.

Councillor Rina Mercuri

CL01 – DA 67/2020 Skate Park – Recreation Facility (Outdoor)
Reason – Councillor Mercuri has received several phone calls from Yenda residents objecting to this DA.

Councillor Rina Mercuri

CL02 – DA 144/2019 – Construction of New Service Station, Vehicle Repair Station, Specialised Retail Premises (three tenancies) and Two Lot Torrens Title Subdivision.
Reason – Councillor Mercuri has received a phone call and an email from an objector.

Councillor Mike Neville

CL02 – DA 144/2019 – Construction of New Service Station, Vehicle Repair Station, Specialised Retail Premises (three tenancies) and Two Lot Torrens Title Subdivision.
Reason – Councillor Neville has spoken to the proponent and an adjoining property owner about aspects of the report before Council.

Councillor Brian Simpson

CL02 – DA 144/2019 – Construction of New Service Station, Vehicle Repair Station, Specialised Retail Premises (three tenancies) and Two Lot Torrens Title Subdivision.
Reason – Councillor Simpson received a phone call from one of the objectors to the development.

Councillor Christine Stead

CL01 – DA 67/2020 Skate Park – Recreation Facility (Outdoor)
Reason – Councillor Stead has spoken to several Yenda residents regarding the position of the planned skate park in Yenda.

Councillor Christine Stead

CL02 – DA 144/2019 – Construction of New Service Station, Vehicle Repair Station, Specialised Retail Premises (three tenancies) and Two Lot Torrens Title Subdivision.

Reason – Councillor Stead has received an email and also spoke to Mr and Mrs Young, regarding the DA 144/2019.

Councillor Dino Zappacosta

CL02 – DA 144/2019 – Construction of New Service Station, Vehicle Repair Station, Specialised Retail Premises (three tenancies) and Two Lot Torrens Title Subdivision.

Reason – Councillor Zappacosta has spoken to an objector.

In relation to declarations of interest regarding CC03 Water Volumetric Water Contribution Policy the General Manager, Mr Stonestreet, reminded Councillors of the advice provided by the Office of Local Government that Councillors may remain in the meeting, consider the report by the General Manager and make a decision regarding that report.

7 PRESENTATIONS

PRESENTATION TO SNOWY VALLEYS COUNCIL - BUSHFIRE APPEAL

20/131

RESOLVED on the motion of Councillors Doug Curran and Christine Stead that Standing Orders be suspended to allow the presentation of funds to Snowy Valleys Council raised through the Mayor's Bushfire Appeal which was launched in January this year. Mayor Dal Broi presented \$13,217.35 to Snowy Valleys Council Mayor, James Hayes, who joined the meeting via Zoom.

20/132

RESOLVED on the motion of Councillors Brian Simpson and Rina Mercuri that the meeting resume standing orders, the time being 7.28pm.

8 MAYORAL MINUTES

Nil

9 GENERAL MANAGER'S REPORT

CL01 DA 67/2020 SKATE PARK - RECREATION FACILITY (OUTDOOR)

Mr Stonestreet read a letter from Mrs Margaret Heath in support of the Development Application.

20/133

RESOLVED on the motion of Councillor Croce and Andreazza:

- (a) Griffith City Council as the consent authority pursuant to Section 4.16(1) of the Environmental Planning & Assessment Act 1979, grant consent to Development Application 67/2020 for the construction of a Skate Park at Lot 701 DP 1030376, Memorial Park Yenda Place, Yenda, subject to conditions set out in Attachment 'A' of the report.
- (b) The Conditions of Consent to include that Griffith City Council work with the proponent on the Graffiti Action Plan prior to the Construction Certificate being issued.

- (c) The Conditions of Consent to state that the Skate Park be closed on ANZAC Day.
- (d) The application be delegated to the Director Sustainable Development for the preparation and issue of the notice of determination.

In accordance with the Local Government Action (section 375A - Recording of voting on planning matters) Council must record the Councillor's vote in relation to the matter.

For	Against
Councillor John Dal Broi	
Councillor Glen Andreazza	
Councillor Simon Croce	
Councillor Doug Curran	
Councillor Deb Longhurst	
Councillor Eddy Mardon	
Councillor Rina Mercuri	
Councillor Anne Napoli	
Councillor Mike Neville	
Councillor Brian Simpson	
Councillor Christine Stead	
Councillor Dino Zappacosta	

The division was declared PASSED by 12 votes to 0.

Councillor Anne Napoli left the meeting having declared a pecuniary interest, the time being 7:50 pm.

CL02 DA 144/2019 - CONSTRUCTION OF NEW SERVICE STATION, VEHICLE REPAIR STATION, SPECIALISED RETAIL PREMISES (THREE TENANCIES) AND TWO LOT TORRENS TITLE SUBDIVISION

The matter was not raised off the Table.

Councillor Anne Napoli returned to the meeting at 7:51 pm.

CL03 WITHDRAWAL OF PLANNING PROPOSAL 2/2018 - 161 REMEMBRANCE DRIVE, GRIFFITH

20/134

RESOLVED on the motion of Councillors Doug Curran and Rina Mercuri that:

- (a) Council resolve to withdraw Planning Proposal 2/2018 for 161 Remembrance Drive, Griffith.
- (b) Council direct the Director Sustainable Development to formerly correspond with the Department of Planning, Industry and Environment to withdraw the Planning Proposal.

In accordance with the Local Government Action (section 375A - Recording of voting on planning matters) Council must record the Councillor's vote in relation to the matter.

A division was called for, voting on which was as follows:

For	Against
Councillor John Dal Broi	
Councillor Glen Andreazza	
Councillor Simon Croce	
Councillor Doug Curran	
Councillor Deb Longhurst	
Councillor Eddy Mardon	

Councillor Rina Mercuri
Councillor Anne Napoli
Councillor Mike Neville
Councillor Brian Simpson
Councillor Christine Stead
Councillor Dino Zappacosta

The division was declared PASSED by 12 votes to 0.

CL04 DRAFT PLAN OF MANAGEMENT - TED SCOBIE SPORTS OVAL - LOT 1 DP 40048

20/135

RESOLVED on the motion of Councillors Mike Neville and Rina Mercuri that:

- (a) Council refer the draft Plan of Management for Reserve 240002, Lot 1 DP 40048 Ted Scobie Sports Oval, to the Minister Administering the Crown Land Management Act 2016 for approval.
- (b) Upon approval from the Minister Administering the Crown Land Management Act 2016 Council amends the draft Plan of Management for Ted Scobie Sports Oval if required and places it on public exhibition as per Section 38 of the Local Government Act 1993.
- (c) Native Title Manager advice will be provided prior to the final adoption of the Plan of Management of Ted Scobie Sports Oval, as is required.
- (d) A report be presented to Council to adopt the final Plan of Management for Ted Scobie Sports Oval on completion of the public exhibition period and to consider all submissions.

CL05 SURRENDER OF LEASES HANGAR SITE 15 AND HANGAR SITES 40,41 & 42 GRIFFITH AERODROME WITH THOMSON AVIATION PTY LTD
NEW LEASES - HANGAR SITE 15 & HANGAR SITES 40,41 & 42 WITH EDSAL PTY LTD & GLOBE PROMOTIONS PTY LTD

20/136

RESOLVED on the motion of Councillors Glen Andreazza and Christine Stead that:

- (a) Council approve the surrender of the lease agreement over Hangar Site 15 and lease agreement over Hangar Sites 40, 41 and 42 Griffith Aerodrome with Thomson Aviation Pty Ltd from 1 June 2020.
- (b) Council enter into a lease agreement with Globe Promotions Pty Ltd and Edsal Pty Ltd over Hangar Site 15 and lease agreement over Hangar Sites 40, 41 and 42 Griffith Aerodrome from 1 June 2020 expiring on 31 December 2021 and new leases commencing 1 January 2022 expiring on the 31 December 2026.
- (c) Globe Promotions Pty Ltd and Edsal Pty Ltd pay all applicable costs and charges associated with preparing the surrender documents and new lease agreements together with Council's Administration Fee of \$450.
- (d) The lease fees continue to be charged in accordance with Council's adopted Revenue Policy, currently \$0.50 for landside areas 10001-15000 sq. metres airside and \$0.99 sq. metre for airside areas 10001-15000 sq. metres, in addition to rates and charges.

- (e) Council authorise the Mayor and General Manager to execute the surrender documents and new lease agreements on behalf of Council under the Common Seal, if so required.

CL06 REX AIRLINES - REQUEST FOR ADDITIONAL FINANCIAL ASSISTANCE

20/137

RESOLVED on the motion of Councillors Simon Croce and Rina Mercuri that:

- (a) Council write to REX Airlines reaffirming its commitment to financial support of the Airline and all other users of the Griffith Airport as per its resolution of 24 March 2020.
- (b) Council decline the request from REX Airlines for additional financial assistance as detailed in their letter of 23 April 2020.

CL07 THIRD QUARTER PERFORMANCE REPORT 2019/20 - BUDGET REVIEW AND OPERATIONAL PLAN

20/138

RESOLVED on the motion of Councillors Brian Simpson and Mike Neville that:

- (a) Council note the variations to the 2019/20 original budget for the quarter ended 31 March 2020 as presented in this report.
- (b) The Financial Review and any additional approved variations for the quarter ended 31 March 2020 be adopted.
- (c) Council adopt the 31 March 2020 Operational Plan Review advising the extent to which the Operational Plan Actions (Performance Indicators) have been achieved.

Councillor Brian Simpson requested further explanation regarding discretionary revenue and expenses. Mr Turner advised detailed information would be emailed to Councillors.

Councillor Anne Napoli left the meeting having declared a pecuniary interest, the time being 8:01 pm.

CL08 GRIFFITH REGIONAL SPORTS PRECINCT DEVELOPMENT LOAN

20/139

RESOLVED on the motion of Councillors Doug Curran and Rina Mercuri that Council endorse a loan application of \$10,000,000 from NSW Treasury Corp over 20 years with semi-annual repayment of interest and principle.

Councillor Anne Napoli returned to the meeting at 8:02 pm.

CL09 PROJECT FOR SURPLUS COMMUNITY GRANT FUNDS

20/140

RESOLVED on the motion of Councillors Glen Andreazza and Christine Stead that:

- (a) Council allocate \$2,500 from unsubscribed funding from the Community Grants budget to the provision of Personal Hygiene Packages for vulnerable youth in Griffith as determined by youth service providers.
- (b) Council allocate \$1,200 from unsubscribed funding from the Community Grants budget to the provision of NBN broadband service to the Alma Bamblett Community Centre for 12 months.

- (c) Council roll over any unspent funds from the Community Grants budget to the 2020/2021 budget.

CL10 MASTER LOCKSMITHS ACCESS KEY (MLAK) TOILETS - REVISION OF OPERATING PARAMETERS

20/141

RESOLVED on the motion of Councillors Glen Andreazza and Christine Stead that:

- (a) Council open the public disabled toilets which are co-located with public toilets and are under the Master Locksmith Access Key (MLAK) system, during normal operating hours.
- (b) Council operate the Master Locksmith Access Key (MLAK) system in public disabled toilets after normal operating hours only.
- (c) Council note the basis upon which Recommendations (a) and (b) are included is due to a legal challenge to Council's current policy with respect to the Master Locksmith Access Key (MLAK) system.
- (d) Reviews to be undertaken and vandalism monitored and reported to the Disability Inclusion & Access Committee.

Council is to obtain costings for an adult change table to be installed in Council's Disabled toilets.

10 INFORMATION REPORTS

Nil

11 ADOPTION OF COMMITTEE MINUTES

Nil

12 BUSINESS WITH NOTICE – RESCISSION MOTIONS

Nil

13 BUSINESS WITH NOTICE – OTHER MOTIONS

Nil

14 OUTSTANDING ACTION REPORT

Councillors Anne Napoli and Eddy Mardon left the meeting having declared a pecuniary interest, the time being 8:22 pm.

OUTSTANDING ACTION REPORT

20/142

RESOLVED on the motion of Councillors Mike Neville and Christine Stead that the report be noted.

Councillors Anne Napoli and Eddy Mardon returned to the meeting at 8:23 pm.

15 MATTERS TO BE DEALT WITH BY CLOSED COUNCIL

In accordance with the Local Government Act 1993 and the Local Government (General) Regulation 2005, in the opinion of the General Manager, the following business is of a kind as referred to in Section 10A(2) of the Act, and should be dealt with in a part of the meeting closed to the media and public.

Set out below is Section 10A(2) of the Local Government Act 1993 in relation to matters which can be dealt with in the closed part of a meeting.

The matters and information are the following:

- (a) personnel matters concerning particular individuals (other than Councillors)**
- (b) the personal hardship of any resident or ratepayer**
- (c) information that would, if disclosed, confer a commercial advantage on a person with whom the Council is conducting (or proposes to conduct) business**
- (d) commercial information of a confidential nature that would, if disclosed:**
 - (i) prejudice the commercial position of the person who supplied it, or**
 - (ii) confer a commercial advantage on a competitor of the Council, or**
 - (iii) reveal a trade secret**
- (e) information that would, if disclosed, prejudice the maintenance of law**
- (f) matters affecting the security of the Council, Councillors, Council staff or Council property**
- (g) advice concerning litigation, or advice that would otherwise be privileged from production in legal proceedings on the grounds of legal professional privilege**
- (h) information concerning the nature and location of a place or an item of Aboriginal significance on Community land.**
- (i) alleged contraventions of any code of conduct requirements applicable under section 440 of the Local Government Act 1993.**

20/143

RESOLVED on the motion of Councillors Christine Stead and Glen Andreazza that:

- (a) Council resolve to go into closed Council to consider business identified.**
- (b) Pursuant to section 10A(1)-(3) of the Local Government Act 1993, the media and public be excluded from the meeting on the basis that the business to be considered is classified confidential under the provision of section [10A(2)] as outlined above.**
- (c) The correspondence and reports relevant to the subject business be withheld from access to the media and public as required by section 11(2) of the Local Government Act 1993.**

Council resolved that members of the press and public be excluded from the meeting during consideration of the items listed below, and that discussion of the report in open Council would be contrary to the public interest.

CC01 SEDIMENT AND NUTRIENT DISCHARGE TREATMENT CONTRACT AT NORTH LAKE WYANGAN

Reason: Commercial Advantage 10A(2)(d)

CC02 TENDER RECOMMENDATION (CONTRACT NO 15-19/20) - NEW AMENITIES BUILDING, JUBILEE OVAL CONSTRUCT CONTRACTOR

Reason: Commercial Advantage 10A(2)(d)

CC03 WATER - VOLUMETRIC WATER CONTRIBUTIONS POLICY

Reason: Legal Proceedings 10A(2)(g)

CC04 HOUSING AND PROPERTY NSW - OLD AMBULANCE STATION (TRANTER PLACE, GRIFFITH) OFFER TO SELL TO GRIFFITH CITY COUNCIL

Reason: Commercial Advantage 10A(2)(d)

Council closed its meeting at 8.23 pm. The livestreamed audio-visual was disconnected.

Councillors Rina Mercuri and Anne Napoli left the meeting having declared a pecuniary interest, the time being 8:37 pm during deliberation of CC02.

Councillor Rina Mercuri returned to the meeting at 8:37 pm.

Councillors Glen Andreazza, Eddy Mardon and Dino Zappacosta left the meeting having declared a pecuniary interest, the time being 8:37 pm during deliberation of CC03.

Councillors Anne Napoli, Glen Andreazza, Eddy Mardon and Dino Zappacosta returned to the meeting at 8:41 pm.

REVERSION TO OPEN COUNCIL

20/144

RESOLVED on the motion of Councillors Christine Stead and Doug Curran that Open Council be resumed.

Open Council resumed at 9:12 pm. The livestreamed audio-visual was reconnected.

Upon resuming open Council the Mayor reported that the following resolutions had been made in Closed Council:

MATTERS DEALT WITH IN CLOSED COUNCIL

CC01 SEDIMENT AND NUTRIENT DISCHARGE TREATMENT CONTRACT AT NORTH LAKE WYANGAN

Mr Harding informed Councillors of an update to the Financial Implications of the report with the amount for design, construction and handover amended to \$1,860,725 together with a 7% contingency.

20/145

RESOLVED on the motion of Councillors Brian Simpson and Glen Andreazza that:

- (a) Council enter into a contract with Woodlots and Wetlands Pty Ltd for the design and construction of a sediment and nutrient discharge treatment system for North Lake Wyangan.

- (b) Council authorise the Mayor and General Manager to sign the contract documents under Council's seal if required.
- (c) Information sessions be held with the Lake Wyangan Catchment Management Committee and then with Councillors at a Workshop with Woodlots and Wetlands Pty Ltd.

The Mayor advised that the recent fish deaths at Lake Wyangan are being investigated and expressed his disappointment at comments made in the media by the Local Member for Murray in relation to Council's management of Lake Wyangan.

CC02 TENDER RECOMMENDATION (CONTRACT NO 15-19/20) - NEW AMENITIES BUILDING, JUBILEE OVAL CONSTRUCT CONTRACTOR

20/146

RESOLVED on the motion of Councillors Brian Simpson and Glen Andreazza that:

- (a) Council, in accordance with Section 178(1)(b), of the Local Government Regulation, reject all tenders submitted for Tender No 15-19/20 New Amenities Building Construction Contract, Jubilee Oval, Griffith due to all submissions being over the allocated budget amount.
- (b) Council, in accordance with Section 178(4)(a), does not need to call fresh tenders for Tender No 15-19/20 as there are suitably qualified and experienced tenderers available to negotiate with.
- (c) Council, in accordance with Section 178(3)(e), enter into negotiations with Forlico Builders & Joss Construction being the preferred tenderers.
- (d) In accordance with Section 178(4)(b), the reason for entering into negotiations with the two tenderers are that they scored the highest in the tender evaluation process.
- (e) At the completion of negotiations, a further report be tabled with Council on the preferred contractor.

CC03 WATER - VOLUMETRIC WATER CONTRIBUTIONS POLICY

20/147

RESOLVED on the motion of Councillors Brian Simpson and Mike Neville that Council delegate to the General Manager the authority to make decisions with respect to the "Water – Volumetric Contributions Policy" Report as included in the Council Meeting agenda 28 April 2020.

CC04 HOUSING AND PROPERTY NSW - OLD AMBULANCE STATION (TRANTRER PLACE, GRIFFITH) OFFER TO SELL TO GRIFFITH CITY COUNCIL

20/148

RESOLVED on the motion of Councillors Mike Neville and Doug Curran that Council decline the offer by Property and Housing NSW to sell to Griffith City Council the Old Ambulance Station and associated buildings as detailed in the report.

There being no further business the meeting terminated at 9:19 pm.

Confirmed:

CHAIRPERSON